

Dayanand Patel v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 14 July 2022 · WRIT - C No. - 19273 of 2022 · **Writ disposed; relegated to Para 6.8 objection with eight-week stay.**

HEADNOTE

A consumer's writ seeking to quash a recovery certificate dated 8 April 2021 and the recovery founded on it, and a mandamus to consider a settlement application, was disposed of without examining merits. The High Court granted liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005, directed time-bound disposal after hearing, and stayed coercive action for a short period.

FACTUAL SUMMARY

The petitioner, a consumer, approached the Allahabad High Court seeking certiorari to quash a recovery certificate dated 8 April 2021 issued by the distribution licensee and the recovery proceedings founded on it, together with a mandamus to consider his application for settlement of electricity dues in accordance with law. Counsel for the Power Distribution Corporation stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

Para 6.8 objection as alternate remedy against recovery demand

HOLDING

Without expressing any opinion on merits, the writ is disposed of with liberty to the petitioner to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before respondent no. 2 within four weeks; if so submitted, it shall be decided in accordance with law within the next four weeks after affording reasonable opportunity of hearing; no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy Writ against the recovery certificate was disposed of without a merits decision, relegating the consumer to an objection under Para 6.8 of the Supply Code. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The assessing authority was directed to decide a Para 6.8 objection, if filed within four weeks, within the next four weeks after hearing, with coercive recovery stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE DATED 8.4.2021 AND THE UNDERLYING ELECTRICITY DEMAND

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1